

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1280

By: Caldwell (Chad)

AS INTRODUCED

An Act relating to schools; requiring school district to spend certain percentage of budget on instructional expenditures; mandating annual increase to comply with requirement; providing for written warning notice for failure to comply; directing warning notice be posted on district website; requiring increased compensation for failure to comply for four consecutive years; mandating permanent compensation increase; defining terms; providing for codification; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 5-128.3 of Title 70, unless there is created a duplication in numbering, reads as follows:

A. Beginning with the 2025-2026 school year, the board of education of each school district in the state shall spend no less than sixty percent (60%) of its annual budget on instructional expenditures.

B. If a school district spends less than sixty percent (60%) of its annual budget on instructional expenditures, it shall increase

1 its instructional expenditures by no less than two percent (2%) each
2 year until the amount spent on instructional expenditures reaches
3 sixty percent (60%) of its annual budget.

4 C. If a school district spends less than sixty percent (60%) of
5 its annual budget on instructional expenditures and does not
6 increase its spending as provided in subsection B of this section,
7 the school district shall receive a written warning notice from the
8 State Department of Education. The notice shall also be posted on
9 the website of the school district.

10 D. If a school district spends less than sixty percent (60%) of
11 its annual budget on instructional expenditures and does not
12 increase its spending as provided in subsection B of this section
13 for four (4) consecutive years after receiving the notice provided
14 in subsection C of this section, the school district shall increase
15 compensation for all teachers in the school district by two percent
16 (2%) for each year in that period in which the school district did
17 not increase instructional expenditures by a minimum of two percent
18 (2%). The pay increase required pursuant to this subsection shall
19 be permanent.

20 E. As used in this section:

21 1. "Annual budget" means a plan of financial operations using
22 revenues contributed from local, state, and federal sources but
23 shall not include revenue received from bond sales, the sale of
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1 property or equipment, school fundraisers, or nonprofit organization
2 contributions or grants; and

3 2. "Instructional expenditures" means instruction and
4 instruction-related expenditures as defined by the National Center
5 for Education Statistics, a federal entity within the United States
6 Department of Education.

7 SECTION 2. This act shall become effective July 1, 2025.

8 SECTION 3. It being immediately necessary for the preservation
9 of the public peace, health or safety, an emergency is hereby
10 declared to exist, by reason whereof this act shall take effect and
11 be in full force from and after its passage and approval.

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